

****27.05.2024****

****Another Fine for GDPR Violation****

The National Supervisory Authority has completed an investigation into Urban Home Development S.R.L. and found that it violated the provisions of Article 13 paragraph (1) letter a) of Regulation (EU) 2016/679 (GDPR) and Article 4 paragraph (5) letter a) of Law no. 506/2004 regarding the processing of personal data and the protection of privacy in the electronic communications sector.

The operator was sanctioned with an administrative fine of 10,000 lei for violating the provisions of Article 4 paragraph (5) letter a) of Law no. 506/2004 and received a warning for violating the provisions of Article 13 paragraph (1) letter a) of the GDPR.

The investigation was initiated following a complaint reporting a possible violation of legal provisions regarding the processing of personal data, as the operator's website did not display information regarding the rights of data subjects according to the GDPR, nor information regarding the use of cookies.

During the investigation, the National Supervisory Authority found that the operator URBAN HOME DEVELOPMENT S.R.L. violated the provisions of Article 13 paragraph (1) letter a) of the GDPR as it did not display on its website information regarding the name/identity of the operator responsible for processing personal data.

It was also found that by accessing the website managed by URBAN HOME DEVELOPMENT S.R.L., cookies were installed on the user's device before obtaining their consent, and these were not technically necessary for the operation of the site.

Thus, the operator stored cookie-type information, violating the provisions of Article 4 paragraph (5) letter a) of Law no. 506/2004.

At the same time, the following corrective measures were ordered for the operator:

- to complete the privacy policy on the website with the necessary information provided by Article 13 paragraph (1) letter a) of the GDPR;
- to reconfigure the method of installing cookies on the devices of the website users.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****